

The AfCFTA Protocol on Digital Trade

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1 Introduction

The Protocol to the African Continental Free Trade Area (AfCFTA) on Digital Trade (DTP) was adopted at the Thirty-Seventh Ordinary Session of the Assembly of African Union (AU) Heads of State and Government, held on 17–18 February 2024 in Addis Ababa, Ethiopia.¹ Following its adoption, the Protocol forms an integral part of the AfCFTA legal framework² and now awaits ratification,³ requiring approval by 22 State Parties to enter into force 30 days thereafter.⁴ Ratifying State Parties will then have five years to implement the DTP and align their domestic laws accordingly.⁵

As one of the substantive foundations of the Agreement Establishing the AfCFTA (AfCFTA Agreement), the Protocol positions the AfCFTA as a central forum for digital economy rulemaking on the continent. It aims to consolidate rules on governmental measures affecting digital trade⁶ across Africa and to support the integration of a common digital market.⁷

This chapter presents an overview of the regulatory framework established by the AfCFTA DTP. In Section 2, I begin by introducing the digital economy's underutilised potential for Africa and the structural challenges facing African digital trade, providing essential context for the legal analysis that follows. In Section 3, I provide background on the Protocol, followed by an examination of its general provisions in Section 4. Market access and the treatment of digital products are addressed in Section 5, while Section 6 outlines digital trade facilitation measures. In Section 7, I consider provisions on data governance. In Section 8, I discuss emerging technologies, and in Section 9, I focus on addressing intra-African digital divides. I conclude the chapter in Section 10.

2 Potentials and challenges in Africa's digital economy

Africa is home to the world's largest underutilised digital growth potential. With a population of almost 1.57 billion⁸ – young, increasingly connected, and digitally eager – and 11 of the world's fastest-growing economies,⁹ the continent is well positioned to expand its role in the digital economy. Intra-African trade, particularly in value-added and industrialised exports, is more strongly linked to economic growth than trade with other regions.¹⁰ Yet Africa still records the lowest volume of intra-regional trade globally, at just 15%.¹¹ Intra-African digital trade is even more underdeveloped, for example, digitally delivered services trade within Africa accounts for only 3.3% of the region's total trade in such services.¹² These low figures signal not only the constraints facing African digital markets, but also extraordinary potential for growth, provided that appropriate structural, infrastructural, and regulatory reforms are implemented.

¹ Protocol to the Agreement Establishing the African Continental Free Trade Area on Digital Trade (DTP).

² Art. 8(3) of the Agreement Establishing the African Continental Free Trade Area (AfCFTA Agreement) signed 21 March 2018. [possible cross-chapter-reference to AfCFTA-Agreement chapter XXXX].

³ As the DTP was adopted in accordance with Arts. 9 and 10 of the Vienna Convention on the Law of Treaties (VCLT).

⁴ Art. 47(2) of the DTP read with Articles 23(2) and (4) of the AfCFTA Agreement.

⁵ Art. 48(4) of the DTP. At the request of, for example, Malawi, the proposed two-year implementation period was extended, as two years was considered too short to implement the many necessary policies, particularly for LDCs (confidential meeting minutes, on file with the author).

⁶ Art. 3(1) of the DTP.

⁷ Art. 2(b), (e) and (h) of the DTP.

⁸ *Worldometer*, 2026.

⁹ *African Development Bank*, 2023, 12.

¹⁰ *World Economic Forum*, 2018.

¹¹ Compared to Europe (67%), Asia (58%) and Latin America (20%), see *WTO*, 2021.

¹² *World Bank Group/WTO*, 2023, 3.

However, this potential remains largely untapped due to persistent digital divides, which operate at three interrelated levels. Each level reflects distinct structural causes and results in systemic forms of exclusion.

First, between Africa and the rest of the world, digital divides are driven by limited infrastructure, low levels of digital industrialisation, weak regulatory and institutional capacity, and the continued dominance of foreign digital firms in African markets.¹³ This dominance is often maintained through abusive practices by major multinational enterprises (MNEs), including exploitative data extraction, anti-competitive behaviour, and platform lock-in, which stifle local innovation and prevent value capture within the continent. As a result, African economies remain peripheral to global digital value chains and largely excluded from the economic benefits and the rule-making processes that shape the global digital trade landscape.¹⁴

Second, within Africa, the digital divide reflects unequal levels of digital readiness, legal frameworks, and regulatory capacity across countries, particularly between more advanced economies and smaller, landlocked, or resource-constrained states.¹⁵ These disparities are rooted in historical inequalities, uneven infrastructure rollout, and limited technical and financial capacities. The consequence is a fragmented digital economy that weakens prospects for coherent regional integration, including the development of regional digital value chains, and undermines the network effects and scale advantages critical for African digital market development.

Third, within countries, digital exclusion arises from intersecting socio-economic factors such as urban-rural divides, income and education gaps, and unequal access to digital devices, networks, and skills.¹⁶

These divides are compounded by structural inequalities that cut across all three levels, most notably, the digital exclusion of MSMEs, women, and youth, resulting in a fragmented and unequal digital landscape. At the same time, Africa remains largely marginalised from global norm-setting processes, particularly those shaped through digital trade provisions in PTAs and other plurilateral instruments, where African countries have little to no representation.¹⁷ These dynamics underscore the urgency of developing regionally grounded, development-oriented frameworks such as the AfCFTA DTP to unlock the continent's digital potential.

3 Background to the Protocol

3.1 Adoption process

The negotiations of protocols and their annexes under the AfCFTA Agreement are structured in phases.¹⁸ Digital trade,¹⁹ along with women and youth in trade,²⁰ formed part of the Phase III negotiations. While Phase III was initially scheduled to commence after the conclusion of Phase II,²¹ in February 2020, the Assembly of AU Heads of State and Government mandated the preparation for

¹³ In detail *Sucker*, LIEI 52 (2025), 5 (part 2.1.2).

¹⁴ *Ibid.*

¹⁵ *Ibid.*, 5 (part 2.2).

¹⁶ *Ibid.*, 5 (part 2.3).

¹⁷ In detail *Beyleveld/Sucker*, in: Drexel et al (eds.), *Comparative Data Law*, 2025 (part 2).

¹⁸ [possible cross-chapter-reference to chapter XXXX].

¹⁹ Initially, the term e-commerce was used.

²⁰ [possible cross-chapter-reference to chapter XXXX].

²¹ *Chidede*, *tralacBlog*, 2021; *Banga/Macleod/Mendez-Parra*, ODI SET Working Paper, 2021; Art. 7(1) of the AfCFTA Agreement; AU Assembly, 36th Ordinary Session, Addis Ababa, 18–19 February 2023.

digital trade negotiations before Phase II negotiations had concluded.²² By December 2020, the process was fast-tracked, with an initial target for completion by the end of 2021.²³ This deadline was later extended to September 2022.²⁴

Substantive negotiations, however, only began in December 2022, reflecting the complexities of aligning national priorities across a diverse membership. Once launched, negotiations progressed rapidly, culminating in the adoption of the DTP by the AU Assembly in February 2024. Completing the Protocol within approximately 14 months reflects a significantly accelerated timeline compared to previous phases and other global digital trade negotiations. Despite challenges, such as reconciling divergent positions on data transfers and payment systems, the swift progress highlights strong political will, the prioritisation of the digital economy by State Parties, and a shared commitment to digital integration.²⁵

Notably, the Committee on Digital Trade – created by the Council of Ministers pursuant to its mandate under Article 11(f) of the AfCFTA Agreement to ‘establish and delegate responsibilities to ad hoc or standing committees, working groups or expert groups’ – has been instrumental in the negotiation process. It served as the primary platform for drafting the Protocol and its annexes, with negotiations conducted over four confidential negotiation sessions to develop the Protocol itself, followed by a further four confidential sessions dedicated to the development of the annexes.

3.2 Key characteristics

Substantively, the Protocol’s broad scope covers more trade-related aspects of the digital economy than most Preferential Trade Agreements (PTAs) that include digital trade provisions.²⁶ This reflects the more comprehensive approach associated with advanced Digital Trade Agreements (DTAs),²⁷ and in some respects approaches the breadth of coverage found in Digital Economy Agreements (DEAs).²⁸ Notably, the Protocol aligns closely with the Digital Economic Partnership Agreement (DEPA),²⁹ the Australia-Singapore DEA, and the UK-Singapore DEA, and appears influenced by their content and design. This is particularly notable given that 29 AfCFTA State Parties are classified as Least Developed Countries (LDCs),³⁰ in contrast to the high-income participants that typically conclude such agreements.

²² AU Assembly, Decision on the AfCFTA, 9–10 February 2020, Assembly/AU/Dec.751(XXXIII), item 23 (3).

²³ AU, Decision on Start of Trading, 2020.

²⁴ AU, Decision on AfCFTA Adoption, 2022.

²⁵ *Mishra/Kugler*, ICQR 73 (2024), 853.

²⁶ 231 out of the 428 trade agreements include digital trade-related provisions, representing the total number of trade agreements coded in the Trade Agreements Provisions on Electronic Commerce and Data (TAPED) Dataset, excluding those that have been terminated or replaced (see *Burri/Mira*, TAPED Dataset, 2025).

²⁷ On the approach, *Burri*, JWT 55 (2021), 77.

²⁸ The so far eight DEAs are: US–Japan Digital Trade Agreement (signed 7 October 2019, entered into force 1 January 2020) (US–Japan DTA); Australia–Singapore Digital Economy Agreement (signed 6 August 2020, entered into force 8 December 2020) (Australia–Singapore DEA); Digital Economy Partnership Agreement (signed 12 June 2020, entered into force 23 November 2021) (DEPA); UK–Singapore Digital Economy Agreement (signed 25 February 2022, entered into force 14 June 2022) (UK–Singapore DEA); Korea–Singapore Digital Economy Agreement (signed 21 November 2022, entered into force 14 January 2023); UK–Ukraine Digital Trade Agreement (signed 20 March 2023, entered into force 1 September 2024) (UK–Ukraine DTA); the AfCFTA DTP; Agreement on Digital Trade between the European Union and the Republic of Singapore (signed 7 May 2025, not yet in force) (EU–Singapore DTA); and Agreement on Digital Trade between the European Union and the Republic of Korea (concluded 10 March 2025; not yet in force) (EU–Korea DTA). For an analysis of the DEAs, see *Burri/Vasquez Callo-Müller/Mesmer*, LIEI 52 (2025).

²⁹ On the DEPA see *Soprana*, Trade, Law and Development 13 (2021), 143.

³⁰ While 32 LDCs are African (*UNCTAD*, 2024), three have not yet ratified the AfCFTA (South Sudan, Somalia, Eritrea): *TRALAC*, 2026.

While, in theory, reservations could be made to the DTP,³¹ it does not adopt DEPA's opt-in approach, under which parties may selectively adopt individual modules. At the same time, the Protocol's organisation appears influenced by DEPA's modular structure and thematic design, which enhances navigability. The Protocol is divided into eleven parts: following the preamble, seven parts address substantive issues, ranging from general provisions and market access to data governance, trust, inclusion and emerging technologies. The remaining four parts deal with operational matters, including institutions arrangements, transparency, cooperation, and final provisions.

The Protocol's 52 provisions, together with its annexes, are subject to the AfCFTA Dispute Settlement Body,³² ensuring more enforceable commitments than those found in some free trade agreements (FTAs) that lack a dispute settlement mechanism.³³ While trade disputes among African countries have been less prominent than those involving external partners, this nonetheless creates the possibility for State Parties to test the legal meaning of specific digital trade terminology, including terms commonly used in DTAs as well as terminology newly introduced by the Protocol, through challenges to the consistency of domestic digital trade measures with its provisions.

However, to support effective implementation, including the alignment of domestic laws with the Protocol,³⁴ and to avoid unintended legal uncertainty, a more constructive approach may be to prioritise guidance and capacity-building over early litigation. Such support could assist governments in developing or adapting domestic digital and data regulations, while also clarifying how the Protocol's provisions apply in practice, including the interpretation of its terminology and the extent to which national measures align with obligations found in other DTAs.

Under Article 37, the Committee on Digital Trade is tasked with overseeing implementation, ensuring compliance, and facilitating cooperation among State Parties. However, the Protocol provides no detail on the Committee's precise functioning, including its enforcement powers or mechanisms to fulfil its responsibilities. While this lack of clarity raises questions about its effectiveness, the Committee's significant role during the negotiation phase offers a strong foundation for its future work. Assuming this implementation role will be particularly important given that the proposed Pan-African Digital Trade Centre, envisioned as a technical institution of the AfCFTA Secretariat to facilitate a multisectoral forum on continental digital trade,³⁵ was not included in the final version of the Protocol, likely due to budgetary constraints.

The phased negotiation approach resulted in a hybrid outcome in terms of institutional integration and normative coherence. While the Protocol is part of the broader AfCFTA framework and subject to its foundational instruments, it was negotiated as a stand-alone legal text. This diverges from the approach in many FTAs, where digital trade is addressed as part of a broader package. The DTP's focused mandate enabled State Parties to concentrate on digital trade and digital economy issues without engaging in trade-offs in other areas. However, this also meant that rules were developed

³¹ Article 25 of the AfCFTA Agreement prohibits reservations only in respect of the AfCFTA Agreement itself, and no equivalent prohibition is included in the DTP, see Chapter XX[AfCFTA Agreement] in this volume, Part 3.1.4.

³² Art. 45 of the DTP.

³³ See, e.g., Art. 17 of the Regional Comprehensive Economic Partnership (RECP): 'No Party shall have recourse to dispute settlement under Chapter 19 (Dispute Settlement) for any matter arising under this Chapter.' See specifically for data localisation Art. 12.14(b) sentence 2 of the RECP.

³⁴ Art. 48(4) of the DTP. At the request of, for example, Malawi, the proposed two-year implementation period was extended, as two years was considered too short to implement the many necessary policies, particularly for LDCs (confidential meeting minutes, on file with the author).

³⁵ Arts. 35 and 36 of the Draft 1.0 of the DTP, 3rd Meeting of the AfCFTA Committee on Digital Trade (confidential, on file with the author).

largely in isolation from other AfCFTA Protocols relevant to digital trade, including those on Trade in Services, Competition Policy, Investment, Intellectual Property Rights (IP Protocol), and Trade in Goods.³⁶

These other Protocols are explicitly referenced only once in the DTP in the context of information and communication technology (ICT) obligations.³⁷ By argumentum a contrario, this suggests they do not apply automatically to digital trade measures. Their provisions apply only when a matter falls within their scope. In the event of a conflict, the other Protocol would prevail, but only to the extent of that conflict and only in relation to matters it governs specifically.³⁸ Conversely, the DTP is not referenced in the other AfCFTA Protocols, except for the Protocol on Women and Youth in Trade,³⁹ which (like the DTP) formed part of the initial Phase III negotiations. This reflects the fact that the other instruments were adopted and negotiated before the DTP text was stabilised.

3.3 Annexures – a built-in-agenda

Article 46 of the DTP establishes a built-in agenda, requiring the development of eight annexures to provide further clarity and specificity to the Protocol's provisions. These Annexures cover eight key issues, namely:

- Rules of Origin;
- Criteria for Determining Legitimate Public Reasons for Disclosure of Source Code;
- Online Safety and Security;
- Cross-Border Data Transfers;
- Emerging and Advanced Technologies;
- Digital Identities;
- Cross-Border Digital Payments;
- Financial Technology.⁴⁰

In addition to this mandatory list, State Parties may also develop additional annexures deemed necessary for the Protocol's implementation.⁴¹

State Parties prioritised the completion of the Annexures to prevent delays in the Protocol's implementation, concluding negotiations just one year after its adoption. With the adoption of the Annexures by the AU Assembly at its Ordinary Session in February 2025 in Addis Ababa, Ethiopia, they now form an integral part of the Protocol,⁴² reinforcing its agenda-driven design. Their adoption marks the completion of the Protocol's comprehensive legal framework and a significant step towards its implementation, offering a clearer blueprint for achieving its objectives. However, while the

³⁶ [possible cross-reference chaptersXXXX].

³⁷ Arts. 36(a)–(e) of the DTP.

³⁸ Art. 44(2) of the DTP.

³⁹ Protocol to the Agreement Establishing the African Continental Free Trade Area on Women and Youth in Trade (Protocol on Woman and Youth in Trade), [possible-chapter-cross-reference XXXX]. Its Article 17 requires State Parties to adopt digital regulatory and institutional frameworks that support the participation of women and youth in trade, including eliminating entry barriers, providing procedural information, offering capacity-building programmes, enabling engagement on digital platforms, and promoting inclusive digital trade policies. See also Article 19, which mandates cooperation between the Committee on Women and Youth in Trade and the Committee on Digital Trade, and Article 23(e), which calls for coordination on digital trade between relevant institutions.

⁴⁰ In order of appearance in the compiled document, see *AfCFTA Secretariat*, Compiled Annexes to the DTP, 2025.

⁴¹ Art. 46(2) of the DTP.

⁴² Art. 46(3) of the DTP.

Annexures provide extensive clarification and substantive additions, certain aspects remain, perhaps unsurprisingly, insufficiently addressed.

4 General provisions

4.1 Definitions and scope

The DTP begins in Article 1 by defining key terms, providing a level of definitional detail that lies between minimalist⁴³ and more extensive approaches.⁴⁴ These definitions help reduce interpretative uncertainty and clarify the Protocol's scope and application. Overall, they align closely with those found in other DTAs and DEAs, with only minor textual variations.⁴⁵

What stands out, however, is that the DTP is the first DTA to include a definition of digital trade. Yet, despite the official joint definition of digital trade by the OECD, WTO, IMF and UNCTAD referring broadly to all trade that is digitally enabled, either when ordered and/or delivered,⁴⁶ the DTP definition restricts the activities covered to trade in goods and services.⁴⁷ In doing so, it excludes newer or evolving forms of digital trade activity that do not neatly fall within either category, without providing further examples or clarification. The definition therefore confines the Protocol's application to a subset of digitally enabled economic activity, leaving wider aspects of the digital economy and more novel or emerging trading practices outside its scope. For example, applications powered by the Internet of Things (IoT) and Artificial Intelligence (AI) do not neatly fall into the traditional trade categories of goods or services. These technologies merge the data-gathering capacity of IoT devices with AI-driven analysis and decision-making, resulting in dynamic and integrated digital processes that challenge traditional trade classifications. This limitation becomes especially important when looking at the Protocol's scope, as the DTP is also the first DTA to limit its scope expressively to 'measures ... affecting digital trade',⁴⁸ whereas some other DTAs refer to the broader concept of the digital economy,⁴⁹ while most refer to "trade enabled by electronic means".⁵⁰

This limitation is difficult to reconcile with the fact that several provisions of the DTP, such as those on market access, explicitly apply to digital products. As is common practice in DTAs, the DTP defines digital products broadly as electronically encoded content produced for commercial distribution and transmitted electronically, excluding digitised financial instruments.⁵¹ It further clarifies, in line with standard DTA practice, that this definition "should not be understood to reflect a State Party's view

⁴³ E.g. the European Union-Japan Economic Partnership Agreement (EU-Japan EPA) limits definitions to 'electronic authentication' and 'electronic signature' in Article 8.71.

⁴⁴ DEPA presents definitions in multiple articles scattered across different sections of the agreement, arts. 1.3, 2.1, 3.1, 4.1, 6.1 & 9.1 of the DEPA; see in detail *Soprana*, Trade, Law and Development 13 (2021), 143, 154; see also art. 1 of the Australia-Singapore DEA.

⁴⁵ An example for a difference, e.g., computing facilities is defined in the DTP as "computer servers and storage devices for processing or storing information" (Art. 1(c) of the DTP), whereas in the Australia-Singapore DEA, those used to access financial market infrastructures are expressly excluded (Article 1(b) of the Australia-Singapore DEA).

⁴⁶ *OECD and others*, 2023.

⁴⁷ Art. 1(g) of the DTP.

⁴⁸ Art. 3(1) of the DTP.

⁴⁹ See, e.g., Art. 1.1(1) of the DEPA.

⁵⁰ See, e.g., Art. 14.2(2) of the Comprehensive and Progressive Agreement for Trans-Pacific Partnership (CPTPP) and Art. 1.1 of the WTO Joint Statement Initiative on Electronic Commerce (eJSI).

⁵¹ Art. 1(h) of the DTP.

that digital products are a good or a service”.⁵² This clarifies that digital products are not inherently goods or services, nor must they be treated exclusively as one or the other. While they may be classified as a good or a service in specific contexts, the definition allows for the possibility that they constitute a distinct category, namely new types of tradeable digital assets or activities that fall outside both traditional trade classifications and the DTP’s own definition of digital trade. This creates a conceptual inconsistency: while the scope of the Protocol is limited to digital trade, narrowly defined as involving trade in goods and services, it nevertheless includes obligations applying to digital products, which may not be classified as either.

4.2 Right to regulate

The inclusion of a provision on the right to regulate has become increasingly common in recent DTAs, particularly those involving the EU.⁵³ The DTP follows this trend in Article 4. However, its independent legal significance is limited. The provision is not framed as an exception permitting restrictions on digital trade measures in specific cases, nor does it introduce any form of voluntariness in relation to treaty obligations. Instead, Article 4 merely reaffirms what is already established under customary international law: states have an inherent sovereign right to regulate within their territories. This right, however, is subject to limitations under customary international law, general principles of international law and States’ treaty obligations. Specifically with respect to treaty obligations, States entering into international agreements accept additional constraints on their regulatory autonomy and cannot subsequently invoke an unrestricted right to regulate.

While some commentators suggest that such clauses may have interpretative value, potentially influencing how obligations or exceptions are construed,⁵⁴ their precise legal impact remains at best uncertain.

A potentially misconceived drafting approach in Article 4 is the enumeration of reasons for exercising the pre-existing right to regulate. The use of “and” before “legitimate public policy objectives” suggests that the first three grounds (to safeguard public welfare, promote sustainable development, and protect essential security interests) are listed as distinct purposes rather than falling within the broader category of “legitimate public policy objectives”. Had State Parties intended these as illustrative examples, they might have used language such as “and other” objectives to avoid this restrictive implication. Treating these objectives as falling outside the recognised scope of public policy objectives may constrain regulatory decision-making under other provisions of the Protocol where those objectives are invoked to justify measures. This tension is difficult to address through provisions in the Annexes, as none explicitly clarifies the interpretation of Article 4,⁵⁵ whereas in other areas, such as cross-border data transfers, similar ambiguities or apparent drafting oversights have been clarified through its Annexes.⁵⁶

5 Market access and treatment of digital products

⁵² Art. 1(h) footnote 1 of the DTP.

⁵³ E.g., Art. 12.3 of the European Union-New Zealand Free Trade Agreement (EU-New Zealand FTA); Art. 3 of the EU-Singapore DTA.

⁵⁴ *Lester*, IELP Blog, 2024.

⁵⁵ A similar ambiguity arises in Recital 11 of the DTP’s preamble.

⁵⁶ See below section 7.1.2.

The Protocol includes market access provisions, including rules of origin (RoO) and customs duties, as well as non-discrimination in relation to digital products. The specific provision on ICT, which requires State Parties to remove tariffs and non-tariff barriers on ICT goods⁵⁷ and to liberalise trade in ICT services in accordance with the relevant AfCFTA Protocols on Trade in Goods and Services, is not discussed further, as it contains a clear and unambiguous liberalisation obligation.⁵⁸

5.1 Rules of origin and customs duties

Articles 5 and 6 are intrinsically linked and must be read together, as they establish the legal framework governing market access for digital products under the Protocol. Article 5 mandates the development of an Annex on Rules of Origin (RoO) to determine when enterprises, digital platforms, and digital content qualify as African.⁵⁹ The Annex is also required to define the scope of digital products covered by the Protocol, taking into account the broader objectives of developing an AfCFTA digital market, promoting trade in African digital products, supporting African firms, and encouraging the use of African digital platforms.⁶⁰ Article 6(1) operationalises this framework by providing that State Parties shall not impose customs duties on digital products transmitted electronically, provided that such products originate from another State Party and meet the origin requirements set out in the RoO Annex.

Read together, these provisions make preferential treatment under the DTP conditional on origin. In essence, digital products are eligible to benefit from duty-free treatment only where they satisfy a two-tier origin test set out in Article 7 of the RoO Annex. First, the relevant digital content must qualify as being of African origin, meaning it is owned by a natural or juridical person of a State Party.⁶¹ Second, that content must be traded either by an African-owned enterprise or through an African digital platform. While both enterprises and platforms must be more than 50% equity owned and controlled, including through the power to appoint a majority of directors,⁶² only enterprises are required to demonstrate ‘substantial business operations’ within the territory of a State Party.⁶³

This differentiation introduces an asymmetry into the origin framework, as platforms are not subject to any operational presence requirement. As a result, the design of the RoO regime creates incentives for firms to structure themselves as platforms rather than enterprises in order to qualify for preferential treatment.⁶⁴ More broadly, the framework relies heavily on formal ownership and control thresholds, does not impose an operational test for platforms, and employs a conceptually fragile ‘substantial business operations’ test for enterprises.⁶⁵ Taken together, these features raise concerns that origin attribution may become detached from meaningful economic embeddedness in African

⁵⁷ Electronics, driven by demand for semiconductors, smartphones, and computing equipment, is the leading traded sector across all economies and the largest contributor to world trade: *McKinsey Global Institute, Global Trade Explorer*, 2025.

⁵⁸ Arts 36(a)–(b) of the DTP.

⁵⁹ See also Art. 46(1)(a) of the DTP, listing RoO as an area for which an Annex must be developed.

⁶⁰ Art. 5 sentence 2 of the DTP.

⁶¹ Art. 6 of the Annex to the DTP on Rules of Origin (RoO Annex) .

⁶² Arts 4 and 5 of the RoO Annex.

⁶³ *Ibid.*; see *Sucker/Wambua*, *Global Trade and Customs Journal* (2025).

⁶⁴ For a detailed analysis of the structural inconsistencies and doctrinal vulnerabilities in the RoO Annex, see *Sucker/Wambua*, *Global Trade and Customs Journal* (2025) sections 5 and 6.

⁶⁵ *Ibid.*

digital ecosystems, allowing actors with minimal substantive presence to qualify for preferential treatment.⁶⁶

The attribution of origin to digital content itself, addressed in Article 6 of the RoO Annex, is particularly complex. Digital products are intangible, frequently co-created across jurisdictions, and often produced through disaggregated value chains, characteristics that are not adequately captured by the ownership-based approach adopted in the Annex. For instance, technologies such as cloud computing and AI typically involve components that are distributed across multiple jurisdictions, making localisation and origin attribution inherently difficult. The absence of clear operational guidance on how origin should be determined in such contexts risks legal uncertainty, inconsistent implementation across State Parties, and disputes in cross-border digital trade.

Even so, the inclusion of RoO in a DTA is highly ambitious. While RoO are standard in FTAs governing trade in goods, their application to digital products is both innovative and unprecedented. In goods trade, RoO function primarily as a technical mechanism to prevent origin fraud and ensure that preferential treatment accrues only to qualifying products. By contrast, because digital products are intangible and difficult to attribute to a single place of origin, existing digital trade chapters and DEAs generally prohibit customs duties on electronic transmissions without conditioning this obligation on origin, and thus do not require RoO. Instead, they rely on non-discrimination disciplines to govern the treatment of digital products irrespective of origin. The AfCFTA departs from this practice by making preferential treatment for digital products explicitly contingent on origin status, thereby extending a mechanism developed for tangible goods into a domain for which it was not originally designed.

Once transposed into the digital context, origin attribution also performs a function that extends beyond tariff preferences. In the digital economy, origin status shapes which actors qualify to participate in, and benefit from, regulatory and policy arrangements associated with digital market integration, including access to digital platforms, data mobility frameworks, and digital industrial policy instruments. As a result, the RoO framework under the DTP does not merely govern customs treatment, but also plays a broader gatekeeping role in structuring participation in the African digital market.⁶⁷

The combined effect of Articles 5 and 6 of the DTP is therefore to enable customs duties on digital products originating from non-African countries, while providing preferential treatment, that is, duty-free access, for digital products originating within the AfCFTA, as defined under the RoO Annex. This approach aligns with the position of several State Parties, including South Africa, which have advocated for generating customs revenue from imported digital products.⁶⁸ However, this position is not shared uniformly across the AfCFTA State Parties.

The DTP's departure from prevailing global practice is noteworthy. All WTO members have thus far adhered to the longstanding, albeit contested, WTO Moratorium on Customs Duties on Electronic Transmissions (WTO Customs Moratorium),⁶⁹ under which members commit not to impose customs duties on electronic transmissions irrespective of origin or preferential trade arrangements. With the

⁶⁶ *Ibid.*

⁶⁷ *Ibid.*

⁶⁸ See also Stuart, *tralac Trade Brief No. G24TB08/2024* (2024).

⁶⁹ WTO MC, *The Geneva Ministerial Declaration on Global Electronic Commerce*, WTO/MIN(98).DEC/2, 25 May 1998; renewed at all subsequent Ministerial Conferences, including the latest in 2024: WTO MC, *Work Programme on electronic Commerce*, Decision of 1 March 2024, WT/MIN(24)/W/26/Rev.1, 1 March 2024.

moratorium expected to expire in 2026⁷⁰ amid growing opposition from several developing countries,⁷¹ most AfCFTA State Parties would no longer face multilateral legal constraints in imposing such duties.⁷² However, for the nine AfCFTA State Parties⁷³ that signed the stabilised text of the WTO e-JSI in July 2024, doing so would contravene Article 11.3 of the e-JSI, which prohibits customs duties among signatories.

Any charge imposed on electronically transmitted digital products would not constitute a traditional customs duty applied to physical goods at the border, but rather a tax on electronic cross-border transmission. The critical distinction lies in the trigger for the levy: a customs duty is imposed by reason of entry across the border, whereas an internal tax is imposed following supply and is typically linked to sales value, revenue, or consumption. Article 6(2) of the DTP reflects this distinction by clarifying that the prohibition on customs duties between State Parties does not affect their ability to impose internal taxes on digital products, provided such taxes are applied consistently with the AfCFTA Agreement.

In practice, however, this distinction is increasingly difficult to maintain. As States seek to address Base Erosion and Profit Shifting (BEPS),⁷⁴ several have introduced digital tax measures, such as significant economic presence (SEP) rules, which permit taxation of firms deriving revenue from a jurisdiction without physical presence.⁷⁵ While these measures are formally characterised as internal taxes on locally generated digital revenues, they primarily affect foreign suppliers engaged in cross-border digital service provision. Although such taxes are not imposed by reason of the act of transmission itself, their economic incidence may nonetheless resemble border measures, thereby sharpening debates about the scope and continued relevance of the WTO e-commerce moratorium.

Moreover, where such levies apply only above revenue or user thresholds that are, in practice, met predominantly by foreign digital firms, they may raise concerns of de facto discrimination under the GATS national treatment obligation in relation to services. By contrast, GATT national treatment disciplines are not implicated, as they apply only to physical goods, which by definition cannot be electronically transmitted.⁷⁶ The inherent difficulty of classifying digitally ordered and/or delivered products within traditional trade categories therefore further complicates the task of distinguishing genuine internal taxes from measures that function, in effect, as customs duties in disguise.⁷⁷

Nevertheless, to prevent circumvention of the preferential treatment created by the prohibition on intra-AfCFTA customs duties, internal taxes and related regulatory measures remain subject to non-discrimination obligations, an issue addressed in the following section.

⁷⁰ Either during the next Ministerial Conference (MC14) or March 31, 2026, whichever is earlier (WTO MC, WTO/MIN(24)/W/26/Rev.1, para 5).

⁷¹ See, e.g., WTO, *Moratorium on Customs Duties on Electronic Transmissions: Need for Clarity on Its Scope and Impact*, Communication from India and South Africa, WT/GC/W/833, November 2021.

⁷² On the economic and political implication of introducing customs duties on digital products originating from non-African countries, see *Sucker/Wambua*, *Global Trade and Customs Journal* (2025), section 7.

⁷³ Benin, Burkina Faso, Cabo Verde, Gambia, Kenya, Côte d'Ivoire, Nigeria, Mauritius, and Cameroon (Joint Statement Initiative on E-commerce, available on the Internet: <https://www.wto.org/english/tratop_e/ecom_e/joint_statement_e.htm> (visited on 11 April 2025)).

⁷⁴ *OECD/G20*, 2015; and *OECD/G20*, 2020.

⁷⁵ See, e.g., Kenya's Income Tax Act (CAP 470.), s. 12E; Nigeria's Companies Income Tax Act, ss 13(2)(c), (2)(e), (4).

⁷⁶ See generally, *Okanga*, JWT 55 (2021).

⁷⁷ See generally, *Fleuter*, Chi. J. Int'l L. 17 (2016).

5.2 Non-discrimination

Article 7 of the DTP addresses non-discrimination in relation to digital products. Its structure reflects both the AfCFTA's distinctive approach to continental preferences⁷⁸ and the incorporation, in the digital trade context, of traditional non-discrimination disciplines.

Article 7(3) repeats the rule stipulated in Article 18 of the AfCFTA Agreement concerning continental preferences in relation to advantages granted to third parties. Under this framework, State Parties are required to extend to one another treatment no less favourable than that accorded to a third party only on a reciprocal basis. Preferential treatment therefore does not accrue automatically but depends on the offering of comparable concessions. This reciprocal, conditional approach to non-discrimination departs from the unconditional most-favoured-nation (MFN) obligation under WTO law and reflects the AfCFTA's internal logic of negotiated continental integration.⁷⁹ At the same time, this design raises questions from the perspective of WTO law, as AfCFTA State Parties that are also WTO Members remain bound by unconditional MFN obligations under GATT Article I, a tension examined in detail elsewhere in this volume.⁸⁰

Article 7(1) and (2) of the DTP are notable in that they explicitly incorporate traditional national treatment (NT) and MFN obligations in relation to digital products. This is particularly significant given that, under other AfCFTA Protocols, the application of traditional MFN disciplines remains uncertain.⁸¹ Under Article 7, MFN requires that any trade advantage granted to other State Parties be extended to all "like" digital products, while NT prohibits less favourable treatment of imported "like" digital products.

Article 7 (1) applies specifically to discrimination based on the origin of the product, whereas Article 7(2) addresses discrimination based on the origin of associated persons or entities such as authors, performers, producers, developers, distributors, or owners. An explicit carve-out applies where differential treatment relates to subsidies, loans or grants provided by a State Party.⁸² The scope of the provisions appears broad, covering both internal regulations and border measures. In this respect, Article 7 functions to safeguard market access and customs commitments against erosion through discriminatory internal measures.

While the wording in Article 7(1) and (2) aligns closely with that found in other DTAs,⁸³ it is notable that the DTP contains no general exception clause permitting otherwise discriminatory measures to be justified on public policy grounds. Nor does the AfCFTA Agreement itself include a general exception applicable across all Protocols. However, general exceptions contained in the Protocols on Trade in Goods and Trade in Services⁸⁴ may nevertheless apply where a measure also relates to trade in goods or services, provided that traditional MFN and NT obligations under those Protocols can be read as applicable.⁸⁵ Excluding their application could be inconsistent with Article 44(1) of the DTP,

⁷⁸ [cross reference to the chapters AfCFTA-Agreement part 3.1.2.4].

⁷⁹ *Ibid.*

⁸⁰ *Ibid.*

⁸¹ *Ibid.*

⁸² Art. 7(2) sentence 2 of the DTP.

⁸³ See, e.g., Art. 14.4(1) of the CPTPP; Art. 3.3 of the DEPA.

⁸⁴ [cross reference to the chapters for Goods/Services].

⁸⁵ [cross reference to the chapters AfCFTA-Agreement part 3.1.2.4].

which prohibits derogation from or modification of rights and obligations under other AfCFTA Protocols.

At the same time, this interpretive approach may generate legal inconsistencies. A measure justified under the general exception of the Goods or Services Protocols could still be found unjustifiable under the DTP due to its silence on comparable exceptions. Article 44(2) addresses such conflicts by providing that the other Protocol prevails where it specifically governs the matter, and only to the extent of the conflict. The key question, therefore, is whether a Protocol can be said to ‘specifically govern’ a matter where that measure affects both trade in goods or services and digital trade. While the Goods Protocol clearly regulates trade-restrictive measures relating to goods, and the Services Protocol governs measures affecting trade in services, the DTP addresses measures affecting digital trade. The DTP’s silence on general exceptions could reflect a deliberate policy choice, although this remains open to interpretation.

If reliance on the Goods or Services Protocol proves unavailable, public policy considerations would need to be addressed within the interpretation and application of the non-discrimination obligation itself. While some scholars argue that such obligations inherently allow for the consideration of legitimate policy objectives, the prevailing view, supported by WTO panel decisions, rejects this approach.⁸⁶ In the absence of an express general exception, regulatory autonomy and policy space under Article 7 are therefore significantly constrained.

Finally, while Article 7 is positioned alongside Article 6 on customs duties under Part II of the DTP, it makes no reference to the RoO Annex. Instead, it defines eligible products as those ‘created, produced, published, transmitted, contracted for, commissioned, or first made available on commercial terms in the territory of another State Party.’ This definitional divergence suggests that Article 7 currently operates independently of the RoO framework, adding a further layer of complexity to the DTP’s market access and non-discrimination regime.

6 Trade facilitation

Part III of the DTP (Articles 8 to 19) introduces a framework for trade facilitation centred on the digitalisation of trade processes and documentation.⁸⁷ A core feature is the principle of technology neutrality, which requires that electronic documents and transferable records be treated as legally equivalent to their physical counterparts. Article 8 sets out this obligation in general terms, prohibiting the denial of legal effect or validity solely on the basis of electronic form. The principle is reiterated in more specific contexts, such as Article 10, which requires State Parties to accept electronic trade administration documents. This repeated emphasis signals a foundational shift towards digitised and interoperable trade processes across the continent.

To give effect to technology neutrality, several provisions in Part III require State Parties to adopt or maintain domestic legal frameworks for electronic transactions. Article 16 obliges them to do so with reference to relevant standards, guidelines, or model laws developed by regional and international bodies, thereby laying the groundwork for legal and technical interoperability. Article 17 builds on this by linking regulatory infrastructure to the facilitation of electronic transferable records.

Some provisions, such as Article 9 on electronic authentication, go further by requiring legal frameworks that enable parties to choose authentication methods, avoid undue technological

⁸⁶ See, generally *Ehring*, JWT 36 (2002), 921.

⁸⁷ In general, *UNCTAD*, December 2023; see also *Tavengerwei*, JIEL 21 (2018), 349.

restrictions, and demonstrate compliance before competent authorities. Others, such as Articles 12 and 13 on electronic contracts and invoicing, reiterate the core obligation to recognise the legal validity of electronic forms, but do not introduce additional regulatory detail.

Certain provisions adopt a more aspirational tone. Article 11 on logistics and last-mile delivery encourages State Parties to improve regulatory environments, streamline licensing, and coordinate transport policies. While framed as best endeavours, these commitments seek to improve transparency, reduce discrimination, and prevent anti-competitive practices, recognising the importance of efficient logistics for digital trade.

Interoperability is a recurring theme in Part III.⁸⁸ Article 19 sets out a general obligation to adopt mechanisms that support mutual recognition of digital tools, such as authentication systems, digital identities, and electronic invoices. Article 13(2) reinforces this by requiring that national laws on e-invoicing support cross-border interoperability, albeit without further elaboration. Articles 14 and 15 go further, requiring national laws aligned with the Annex on Digital Identities (DigID Annex) and the Annex on Cross-Border Digital Payments (DigPay Annex). These Annexes aim to promote interoperability across digital identity systems and digital payment and settlement infrastructures, guiding convergence around common standards and mutual recognition frameworks.

Article 18 recognises the central role of digital infrastructure in enabling digital trade but adopts only a best-endeavours approach. State Parties “shall endeavour” to promote development, investment, interoperability, and affordability in digital infrastructure, including regional data centres and shared networks. While the provision identifies key priorities, such as universal access, cross-border interconnectivity, and regulatory support, the lack of hard commitments and firm commitments risks undermining broader trade facilitation goals. Nonetheless, it gestures towards a common framework for enabling local data storage and cross-border data flows, positioning African economies to participate more effectively in global digital trade.

7 Data governance

Part IV of the DTP, titled “Data Governance”, addresses core issues such as cross-border data transfers and personal data protection. However, it does not encompass the full range of matters typically associated with data governance, such as consumer protection and broader trust-related concerns, which are covered in Part V, “Business and Consumer Trust”. In this discussion, I follow the DTP’s structure but address data protection standards under Part IV on “online trust”.

7.1 Cross-border data flow

Cross-border data flows (CBDFs) are regulated under Part IV of the DTP, which includes provisions on cross-border data transfer (Article 20), personal data protection (Article 21), data facility location (Article 22), and data innovation (Article 23). The general principle that cross-border data transfer should be permitted, established in Article 20(1), is expressly conditioned on compliance with the Annex on Cross-Border Data Transfers (CBDT-Annex). This Annex gives effect to the mandate in Article 20(3),⁸⁹ and addresses aspects such as legitimate public policy objectives, data usage limitations, third-party data sharing, and applicable data protection regimes. While titled “Cross-Border Data

⁸⁸ On interoperability, see *Belli and Doneda*, IDPL 13 (2023).

⁸⁹ Art. 2(a) of the Annex to the DTP on Cross-Border Data Transfers (CBDT-Annex).

Transfers”, the CBDT-Annex was developed with all four provisions of Part IV in mind.⁹⁰ Its 30 articles reflect a holistic regulatory approach that extends beyond the data transfer provision in Article 20 and inform the interpretation and application of the entire Part IV framework.

7.1.1 Substantive data transfer and data localisation obligations

Article 20(1) requires that cross-border data transfers, including both personal and non-personal data, be permitted when conducted for digital trade by entities from State Parties. This focus on digital trade represents a departure from the broader business activity scope found in earlier confidential drafts, which had mirrored the general business scope⁹¹ typically seen in other DTAs.⁹² The final formulation instead aligns with the defined scope of both the DTP and CBDT-Annex,⁹³ thereby ensuring that the obligation is confined to digital trade-related activities.

The general CBDF obligation is further elaborated in Part III (Articles 16 to 22) of the CBDT-Annex. Entitled Facilitating Cross-Border Data Transfers, Part III establishes the normative framework for CBDFs, including core principles and mechanisms for seamless and secure cross-border data flows. For example, Article 16(1) of the CBDT-Annex clarifies that the obligation to allow cross-border data transfers entails a duty to refrain from applying measures that restrict or prohibit such transfers. The breadth of this obligation is reinforced by Article 16(2), which defines such measures as including ‘any prohibition, condition, restriction or limitation, whether temporary or permanent, provided for in the laws, regulations, administrative requirements or practices of a State Party to the transfer of data’.⁹⁴ In addition to these negative obligations, State Parties have added positive obligations, including requirements to adopt or maintain reasonable and appropriate measures to ensure secure and uninterrupted data transfers,⁹⁵ as well as to identify and remove barriers to such flows.⁹⁶

Moreover, Article 17 of the CBDT-Annex requires that transferred data be afforded an equivalent level of protection to the data of a State Party’s own persons. Article 18 further introduces non-discrimination obligations applicable to transferred ‘like’ data. While such obligations are common in trade agreements, they have not featured prominently in CBDF provisions in DTAs to date. Article 19, in turn, requires State Parties to facilitate secure CBDFs through mechanisms like regional data centres, self-regulatory codes of conduct, and certification mechanisms, and includes dedicated provisions addressing the needs of MSMEs and underrepresented groups.⁹⁷

With respect to data localisation, Article 22 of the DTP prohibits State Parties from requiring the use or location of computing facilities within their territory as a condition for conducting digital trade.⁹⁸ This framing permits localisation requirements for data collected or processed in contexts falling

⁹⁰ Confirmed in Preamble recital 2 of the CBDT Annex.

⁹¹ On file with the author.

⁹² E.g., Art. 14.11(2) of the CPTPP; Art. 19.11(1) of the United States-Mexico-Canada Agreement (USMCA).

⁹³ Art. 3 of the DTP; Art. 3 of the CBDT Annex.

⁹⁴ This definition is cited from Case C-311/18 *Data Protection Commissioner v Facebook Ireland Ltd and Maximilian Schrems* ECLI:EU:C:2020:559 (Grand Chamber) para 105, see footnote 14 in AfCFTA Secretariat, Explanatory Notes for the Draft 2.0 Annexes to the AfCFTA Protocol on Digital Trade, September 2024, p 30 (confidential, on file with the authors).

⁹⁵ Art. 16(3) of the CBDT Annex.

⁹⁶ Art. 16(5) of the CBDT Annex.

⁹⁷ In greater detail on part III of the Annex, see *Vasquez Callo-Müller/Sucker*, IDPL 15 (2025).

⁹⁸ In parallel with Article 20, earlier drafts of the Protocol still included a business focus (on file with author).

outside the Protocol's scope, such as activities that extend beyond digital trade in services or goods, while the provision provides no examples to clarify this distinction.

A noteworthy and atypical feature appears in Article 22(3), which, introduced only in the final version of the Protocol, requires State Parties to “encourage and support the establishment and use of computing facilities within State Parties to *promote the development of local digital infrastructure*”.⁹⁹ This provision appears to reflect a compromise aimed at reconciling divergent State Party positions on data localisation, and aligns with the facilitative mechanisms for CBDFs set out in Article 19 of the CBDT-Annex. While unlikely to prompt immediate domestic legal reforms, Article 22(3) signals a developmental orientation, offering a basis for strengthening African digital infrastructure in response to persistent technical capacity constraints that continue to hinder the broader goal of advancing data sovereignty in Africa. Such a provision is uncommon in digital trade chapters and DEAs. The importance of Article 22(3) is further underscored by two provisions in the RoO Annex, which explicitly refer to it and require State Parties to encourage African-owned enterprises and African digital platforms to establish and use computing facilities within State Parties.¹⁰⁰ The Annex goes even further by also requiring State Parties to encourage African-owned enterprises to establish and use African digital platforms,¹⁰¹ thereby reinforcing the developmental orientation of the data localisation framework.

7.1.2 Exceptions

Articles 20(2) and 22(2) of the DTP allow State Parties to impose restrictions on cross-border data transfers, including data localisation measures, to achieve public policy objectives. Any such restriction under these provisions must satisfy two cumulative conditions: it must not be applied in a manner that constitutes arbitrary or unjustifiable discrimination, or a disguised restriction on digital trade, and it must not impose data transfer restrictions “greater than required to achieve the objective”. These conditions closely mirror the chapeau and necessity tests in the general exceptions clauses of the General Agreement on Tariffs and Trade (GATT) and the General Agreement on Trade in Services (GATS),¹⁰² suggesting that their interpretation may be informed by established WTO panel and Appellate Body rulings.¹⁰³

Article 24 of the CBDT-Annex clarifies that public policy objectives “include” the protection of essential security interests, public order and safety, public morals, and public health. First, this indicates that the use of “or” before “essential security interests” in both Articles 20(2) and 22(2) was likely a drafting oversight¹⁰⁴ and does not suggest the existence of a distinct objective falling outside the scope of public policy objectives, which are therefore subject to the same conditions and tests. This reading stands in some tension with the structure of Article 4 (right to regulate) and the preamble, where no such clarification is possible.¹⁰⁵ Second, it also means that the “essential security” exception is not expressed with the typical “considers” language found in instruments like Article XXI of the GATT,

⁹⁹ Emphasis added.

¹⁰⁰ Arts 4(4) and 5(3) of the RoO Annex.

¹⁰¹ Art. 5(4) RoO Annex.

¹⁰² Art. XX of the General Agreement on Tariffs and Trade (GATT); Art. XIV of the General Agreement on Trade in Services (GATS).

¹⁰³ This is not uncommon and can be found in a number of other digital trade agreements, see *Burri/Kugler*, JIEL 27 (2024).

¹⁰⁴ Same oversight in Art. 23(2) of the CBDT Annex.

¹⁰⁵ See above section 3.2.

which would allow for greater flexibility.¹⁰⁶ Third, by using “including”, the list is non-exhaustive, thereby providing interpretative flexibility in the identification of public policy objectives and offering ample policy space for State Parties when addressing potential conflicts with DTP obligations.

Moreover, the CBDT-Annex introduces additional layers of specificity applicable to the operation of exceptions. While Article 16(4) requires State Parties to “refrain from restricting cross-border data transfers, including personal data,” where the data protection law in the receiving State Party meets the standards set out in Article 21 of the DTP and Part II of the CBDT-Annex,¹⁰⁷ Article 25 of the CBDT-Annex, in turn, permits State Parties ‘to restrict the transfer of data, including personal data’, where the receiving State Party lacks a personal data protection law meeting these data protection standards, subject to meeting the necessity requirement and the chapeau conditions.¹⁰⁸ Put differently, these provisions introduce both flexibility and discipline: they add an exception where no shared standard exists yet preclude invoking an exception once such a standard is established.

Article 26 further constrains the scope of the public policy exceptions in relation to sensitive data transfers and clarifies how the public policy exception applies in this context, by specifying a “must-allow” transfer regime.¹⁰⁹ In practice, this architecture significantly limits regulatory discretion when its conditions are satisfied. The level of granularity regarding sensitive data transfers is unprecedented in previous digital trade chapters or DEAs and reflects a deeper degree of digital and data market integration, comparable to regions such as the EU. As a result, several AfCFTA State Parties will need to adapt their domestic legal frameworks to align with the Protocol’s requirements, fostering greater legal coherence across the continent. This is significant given that African domestic laws have traditionally imposed strict limitations on sensitive data transfers. For instance, Malawi generally prohibits the transfer of genetic data,¹¹⁰ while Kenya, beyond requiring adequacy or data subject consent, empowers the Data Commissioner to regulate such transfers,¹¹¹ and Rwanda requires all banks licensed by the Central Bank to store data locally.¹¹²

7.1.3 Further key points

The Annex also requires enforcement by competent authorities¹¹³ and obliges State Parties to ensure that enterprises adopt compliant policies, with special consideration for MSMEs and underrepresented groups.¹¹⁴ This focus is absent from most FTAs and DEAs, but is particularly important for Africa’s MSME-driven economies.¹¹⁵ In this regard, the interoperability and harmonisation of data protection laws must be promoted¹¹⁶ to enable CBDFs, supporting the development of a convergent AfCFTA digital market.

¹⁰⁶ So far, the RCEP is the only DTA to make explicit reference to the protection of essential security interests as a justification for restricting CBDFs and imposing requirements regarding on the location of computing facilities (Arts. 10.15, 12.14(3), 12.15(3), 17.13 of the RCEP).

¹⁰⁷ On the standard, see below section 7.2.2.

¹⁰⁸ Art. 23(2) of the CBDT-Annex,

¹⁰⁹ Arts 26(2) and (3) of the CBDT-Annex.

¹¹⁰ *DS-I Africa Law*, 2024.

¹¹¹ Ss 25.h, 48 and 49 of the Kenya Data Protection Act of 2019.

¹¹² Art. 3 of the National Bank of Rwanda (BNR), Cybersecurity, Regulation No. 02/2018 of 24/01/2018.

¹¹³ Art. 11 of the CBDT Annex.

¹¹⁴ Art. 12 of the CBDT Annex.

¹¹⁵ MSMEs contribute more than 40% of GDP (*World Bank*, 2019).

¹¹⁶ Art. 15 of the CBDT Annex.

Moreover, transparency is a cornerstone of the framework, requiring State Parties to publish laws and regulations affecting data transfers in a timely manner and to notify stakeholders of changes.¹¹⁷ Cooperation is also emphasised, with obligations relating to information sharing, capacity building, and stakeholder engagement.¹¹⁸ State Parties must further provide periodic updates to standards and regulatory frameworks to keep pace with technological developments.¹¹⁹

Finally, Article 22 of the CBDT-Annex highlights the role of data in Africa's development by advocating for regional data infrastructure, data-driven innovation, and the establishment of a policy-making forum, and by requiring State Parties to facilitate, promote, and support a broad range of data-driven activities that generate economic and societal benefits in support of Africa's broader development goals. Overall, the CBDT-Annex provides an unprecedented level of detail on cross-border data flows, particularly with respect to sensitive data. This degree of specificity remains uncommon in digital trade chapters of FTAs or DEAs.

7.2 Online trust

A welcome feature of the DTP is its emphasis on building trust in online transactions, reflected in the provisions of Part V (Business and Consumer Trust). While Part V explicitly includes only the Annex on Online Safety and Security (Online Safety Annex), which contains commitments to foster a safe online environment that supports digital trade, innovation, and socio-economic development, three other Annexes are also relevant to trust, particularly in relation to cybersecurity. The Annex on Emerging and Advanced Technologies (EmergTech Annex) encourages the use of new technologies, including AI, in modern cyber defence. The Annex on Financial Technology (FinTech Annex) and the DigPay Annex highlight the importance of improving digital transaction security and strengthening trust in the financial sector.

7.2.1 Source code

Part V begins with a provision on source code (Article 24), reflecting the importance of safeguarding proprietary technologies while allowing for targeted regulatory oversight. Although intellectual property is primarily addressed under the IP Protocol,¹²⁰ the inclusion of source code in the DTP underscores its particular relevance to digital trade.¹²¹

Article 24 establishes a general prohibition on requiring access to or transfer of source code as a condition for market entry.¹²² While this promotes business trust by protecting commercially sensitive software assets, it may also limit the ability of State Parties to regulate AI technologies effectively and hinder technology transfers that could benefit local start-ups. It could further restrict the capacity to scrutinise social media algorithms to protect children from harmful content.¹²³ Thus, access may be required under two exceptions: (a) for regulatory or judicial purposes such as investigations, and (b) for legitimate public interest reasons as outlined in the accompanying Annex on Criteria for Determining the Legitimate and Legal Public Interest Reasons for Disclosure of Source Code (Source

¹¹⁷ Art. 20 of the CBDT-Annex.

¹¹⁸ Art. 21(1) of the CBDT-Annex.

¹¹⁹ Art. 21(4) of the CBDT-Annex.

¹²⁰ [IP-chapter-cross-reference].

¹²¹ On source codes in DTAs in general, see *Vasquez Callo-Müller (forthcoming)* esp table 1.

¹²² Voluntary transfers, such as open-source licensing or contractual agreements, fall outside this general prohibition (Art. 24(3) of the DTP.

¹²³ *Gathii*, AfronomicsLaw, 2024.

Code Annex). The Annex sets out an ambitious aim: to promote legitimate public interests and technology transfer in digital trade regulation, while safeguarding commercial interests, technological innovation, and IP rights.¹²⁴ It seeks to balance public and private interests in advancing socio-economic and technological development.¹²⁵

Most of the listed public interest grounds align with established trade exceptions such as public health, public morals, and essential security. However, the inclusion of “access to and protection of critical infrastructure”,¹²⁶ while relevant to digital contexts, could be interpreted broadly and may warrant further definition to avoid overreach. More problematically, the inclusion of “preventing arbitrary or unjustifiable discrimination” appears misplaced. Rather than functioning as a public interest ground, it is better understood as a constraint on the use of the exception itself and is in fact treated as such in Article 4. That provision sets out the traditional necessity requirement and chapeau-style conditions found in trade law, and adds two IP-specific safeguards: consistency with IP protection and enforcement under the AfCFTA framework, and a requirement to avoid unreasonable prejudice to the legitimate interests of the affected party.¹²⁷ These safeguards are intended to prevent abuse of the access provision and help preserve business confidence by ensuring that any disclosure of source code is properly justified and narrowly applied.

7.2.2 Establishment of regulatory frameworks on digital trust

As in most DTAs, the DTP requires State Parties to establish regulatory frameworks to enhance business and consumer trust in digital transactions. These include obligations to adopt measures on unsolicited electronic communications, cybersecurity, online consumer protection, and data protection. While data protection, a core trust issue, is addressed in Part IV of the Protocol, it forms part of the broader trust agenda. The absence of comprehensive regulation in these areas¹²⁸ remains a key challenge across Africa, which faces frequent data breaches¹²⁹ and some of the highest levels of cybercrime globally.¹³⁰

To begin with, Article 21(1) requires State Parties to establish legal frameworks for the protection of personal data of natural persons engaged in digital trade. This largely reiterates Article 8(1) of the Malabo Convention,¹³¹ but with a specific focus on digital trade. Paragraph 2 directs State Parties to develop such frameworks with consideration of principles and guidelines issued by relevant regional, continental, and international organisations, including the Malabo Convention.

Going beyond the general requirement in many DTAs to adopt domestic data protection laws, the remaining paragraphs of Article 21 and Part II of the CBDT-Annex establish principles and standards

¹²⁴ Art. 2(b) of the Annex to the DTP on Criteria for Determining the Legitimate and Legal Public Interest reasons for Disclosure of Source Code (Source Code Annex).

¹²⁵ Art. 2(c) of the Source Code Annex.

¹²⁶ Art. 3(e) of the Source Code Annex.

¹²⁷ Arts 4(c) and (d) of the Source Code Annex.

¹²⁸ As of 2024, only 61% of African countries have data protection laws, 72% have cybersecurity laws, and just 52% have consumer protection laws applicable to online transactions; 15 of them have none (*UNCTAD, Data protection and privacy legislation worldwide, 2025; UNCTAD, Cybercrime legislation worldwide, 2025; UNCTAD, Online consumer protection legislation worldwide, 2025*). On 2023 numbers specifically to data protection with further details see *Ferracane/González Ugarte/van der Marel, JIEL 28 (2025), 8–10*.

¹²⁹ *Chinedu/Okafor, Business Insider Africa, 2024*.

¹³⁰ *Interpol, 2025*.

¹³¹ African Union Convention on Cyber Security and Personal Data Protection (Malabo Convention).

for personal data protection, with Article 4(2) of the CBDT-Annex requiring State Parties to align their national legal frameworks with the standards stipulated in Articles 5 to 14 of Part II of the Annex.¹³²

Paragraph 3 of Article 21 of the DTP introduces a transparency obligation by requiring the publication of applicable laws, individual remedies, and enterprise compliance requirements. Paragraph 4 adds a novel obligation: State Parties must ensure that enterprises within their jurisdiction adopt, maintain, and publicly disclose their data protection policies. While this aims to raise standards, it may place a disproportionate burden on MSMEs, which often lack the capacity to meet increased compliance requirements. Paragraph 5 reflects a shift from the confidential draft's "shall endeavour" language to a mandatory obligation.¹³³ It requires State Parties to establish mechanisms for cross-border cooperation in handling personal data complaints, signalling a move towards greater regulatory convergence in an area where coordination has so far been limited.

The principles in Part II of the CBDT-Annex include lawful and transparent processing, data minimization, purpose and storage limitations, accuracy, security, confidentiality and integrity, and accountability.¹³⁴ With the exception of 'security', they resemble the principles for lawful processing in Article 5 of the EU's General Data Protection Regulation (GDPR).¹³⁵ However, unlike the GDPR, the Annex does not include a definition of these principles, thereby allowing State Parties significant discretion in their implementation. In addition, Article 6 of the CBDT-Annex succinctly outlines data subjects' rights, including access, correction, erasure, and objection to processing.¹³⁶ Its non-exhaustive language enables State Parties to introduce additional rights. Other provisions mandate safeguards against data misuse,¹³⁷ protection by design and default,¹³⁸ and remedies for breaches.¹³⁹ Importantly, these standards are not confined to the regulation of CBDT. They are expressly referenced across several Annexes¹⁴⁰ and operate as horizontal benchmarks for data governance within the DTP framework as a whole. Embedding such detailed substantive data protection standards within a digital trade agreement is highly unusual and has no close parallel in existing FTA digital trade chapters or DEAs.

With respect to cybersecurity, Article 25(1) requires that relevant measures be developed with regard to regional, continental, and international instruments, supporting regulatory alignment with frameworks such as the Malabo Convention without prescribing specific norms.

Paragraph 2 adopts a "shall endeavour" formulation, encouraging collaboration, institutional capacity-building, and stakeholder involvement across government, industry, civil society, and academia. This mirrors cooperative provisions in other DTAs, supporting convergence through AfCFTA institutions such as the Committee on Digital Trade. While not easily enforceable, this approach may contribute

¹³² Article 15 (interoperability and harmonisation) is excluded from this obligation even though it is part of Part II of the CBDT-Annex.

¹³³ On file with the author.

¹³⁴ Art. 5 of the CBDT-Annex.

¹³⁵ Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), OJ (2016) L 119/1.

¹³⁶ Art. 5–7, CBDT-Annex.

¹³⁷ Art. 8 CBDT-Annex.

¹³⁸ Art. 9 CBDT-Annex.

¹³⁹ Art. 10 CBDT-Annex.

¹⁴⁰ See Art. 7 of the Annex to the DTP on Emerging and Advanced Technologies (EmergTech Annex); Art. 9 of the Annex to the DTP on Digital Identities (DigID Annex); Art. 18(3) of the Annex to the DTP on Cross-Border Digital Payments (DigPay Annex); and Art. 13(3) of the Annex to the DTP on Financial Technology (FinTech Annex).

over time to a common baseline of cybersecurity practices, addressing the continent's uneven levels of preparedness.

Mirroring Article 21(4)'s approach to data protection, paragraph 3 shifts the focus to private actors. It requires State Parties to ensure that enterprises within their jurisdiction follow recognised cybersecurity best practices, including risk identification, protection, detection, response, and recovery. This introduces minimum compliance standards. While enterprises are not direct participants in the AfCFTA, their role is central to building trust in the digital economy and ensuring effective protection for users.

In relation to consumer protection, Article 27(1) requires State Parties to adopt domestic laws prohibiting misleading, fraudulent, or deceptive commercial practices, and to ensure protection at least equivalent to that available offline.¹⁴¹ Consumer rights must include the ability to return unsafe, defective, or unfit goods and to request a refund or replacement within a reasonable period.¹⁴² State Parties must also cooperate on enforcing and developing cross-border redress mechanisms.¹⁴³ Article 28 addresses unsolicited electronic communications by requiring that State Parties adopt or maintain at least one of three specified measures: obtaining prior consent, enabling opt-outs, or limiting such communication through other means.¹⁴⁴ State Parties must also ensure access to effective remedies and cooperate in regulation.¹⁴⁵ Finally, Article 26 adopts a "shall endeavour" approach, encouraging State Parties to ensure that consumers can access and use internet services and devices of their choice. This is subject to transparent, reasonable, and non-discriminatory network management, and States must provide information on such practices.

8 Emerging technologies and innovation

While not addressed as extensively as in some other DTAs,¹⁴⁶ the DTP does cover emerging technologies and innovation in Part VII. However, the commitments in this Part are largely facilitative rather than prescriptive. Despite their strategic importance, State Parties only commit to facilitating the regulation of emerging and advanced technologies, including the Internet of Things, AI, machine learning, robotics, 5G, 3D printing, quantum computing, blockchain, and virtual reality.¹⁴⁷ These obligations do not require regulatory harmonisation, but rather cooperation and enabling domestic governance approaches and are subject to the pursuit of legitimate public policy objectives and the safeguarding of essential security interests.¹⁴⁸

Nevertheless, State Parties are at least required to develop governance frameworks for the ethical, trusted, safe, and responsible use of such technologies. More specific guidance on technical standards and regulatory requirements is provided in Part III of the EmergTech Annex. Importantly, the Annex does not establish binding regulatory standards, but instead promotes coordination, capacity building,

¹⁴¹ Art. 27(2) of the DTP.

¹⁴² Art. 27(3) of the DTP.

¹⁴³ Arts 7(4) and (5) of the DTP.

¹⁴⁴ Art. 28(1) of the DTP.

¹⁴⁵ Arts 28(2) and (3) of the DTP.

¹⁴⁶ On the relevant provisions in the DEPA and DEA, see *Soprana*, Trade, Law and Development 13 (2021), 143.

¹⁴⁷ Art. 1(b) of the EmergTech Annex.

¹⁴⁸ Art. 34(1) of the DTP. As in the preamble and Articles 4, 20, and 22 of the DTP, the use of 'and' suggests that public policy objectives and essential security interests are treated as distinct concepts. However, as with CBDFs (see section 7.1.2), this may have been rectified by listing essential security as one of the public policy objectives in Art. 13 of the EmergTech Annex.

and the exchange of best practices. Overall, the Annex promotes research and capacity building, encourages responsible deployment and cooperation, and supports regulation that facilitates digital trade, underpinned by harmonised and transparent rules.¹⁴⁹

Article 35 of the Protocol focuses on Financial Technology. Its language is largely facilitative, encouraging collaboration among FinTech enterprises, support for cross-border opportunities, and efforts to strengthen Africa's FinTech ecosystem.¹⁵⁰ However, it also imposes clear obligations on State Parties to adopt relevant regional, continental, and international standards.¹⁵¹ This distinguishes the FinTech framework from the more general treatment of emerging technologies elsewhere in the Protocol.

The FinTech Annex outlines specific requirements and provides guidance on the regulations and standards that must be adopted. Its provisions aim to support cross-border digital payments and intra-African trade, encourage responsible innovation and regulation cooperation, promote collaboration among governments, FinTech firms, and industry bodies, and establish harmonised rules for seamless FinTech operations across Africa.

While Part VIII of the Protocol refers to innovation, the term is only explicitly mentioned in Article 36(e), which encourages innovation in the ICT sector in accordance with the IP Protocol. Data innovation is addressed separately in Article 23, under the cross-border data transfer provisions, and in Article 32 on digital inclusion, where it is linked to digital innovation and entrepreneurship.¹⁵² This dispersed treatment of innovation reflects the Protocol's functional rather than integrated approach to innovation governance.

9 Addressing intra-African inequalities

A confidential DTP negotiating document¹⁵³ reveals that while State Parties acknowledge the potential benefits for MSMEs, the risks and challenges these enterprises face are not expressly considered. This may explain why the few provisions that may contribute to addressing intra-African inequalities, including differing levels of economic development and the varying speeds at which African economies are integrating into the digital economy,¹⁵⁴ are unlikely to be sufficient to bridge existing gaps.

9.1 Digital trade inclusion

To foster inclusive digital trade across the continent, the DTP dedicates Part VI to "digital trade inclusion", comprising four provisions: digital inclusion, MSMEs, digital innovation and entrepreneurship, and digital skills development. This focus is both significant and innovative, marking the DTP as only the second DTA, after the DEPA,¹⁵⁵ to explicitly address digital inclusion as a trade policy objective.

¹⁴⁹ Art. 2 of the EmergTech Annex.

¹⁵⁰ Arts. 35(1)(a)–(d) of the DTP.

¹⁵¹ Art. 35(1)(e) of the DTP.

¹⁵² See below section 8.1.

¹⁵³ On file with the author.

¹⁵⁴ In detail *Sucker*, LIEI 52 (2025), part 2.

¹⁵⁵ Module 9 (digital innovation and the digital economy), Module 10 (SMEs), and Module 11 (digital inclusion) of the DEPA; noting, that digital skills are not addressed.

While all four provisions impose obligations on State Parties, the obligation to ‘promote and facilitate’ is difficult to enforce in practice, as it lacks benchmarks for compliance or guidance on how to meet these commitments. This contrasts with more concrete obligations, such as mandatory funding for infrastructure or defined education programmes. While this approach falls short of what is arguably required, given the wide gaps in economic and digital development among State Parties and market participants, it nonetheless sends an important signal. To date, similar provisions are found only in the DEPA. It suggests that State Parties have recognised that, while the digital economy offers enormous opportunities, its benefits are not equally shared.

To ensure broad participation in digital trade, Article 30 introduces an obligation to promote and facilitate equitable access to ICT, affordable and reliable internet services, improved cross-border connectivity, digital skills, and the participation of underrepresented groups, including women, youth, indigenous peoples, rural populations, and persons with disabilities. It also calls for addressing barriers, sharing best practices, and fostering regional and multilateral cooperation. The inclusion of this provision reflects growing consensus that digital inclusion is fundamental to Africa’s digital economy.

To enhance the meaningful participation of MSMEs in digital trade, Article 31 requires State Parties to promote and facilitate their access to information, online platforms, financing, technology, logistics, and supply chains. It also calls for cooperation, capacity-building, incentives, and the transfer of technology and skills to strengthen MSMEs’ competitiveness and integration into regional and global digital markets. This suggests a recognition that, while digital trade lowers barriers to entry for MSMEs, adequate support is needed to enable them to participate fully. This focus is particularly significant, given that MSMEs make up the vast majority of market participants in Africa.

Article 32 addresses digital innovation and entrepreneurship, requiring State Parties to establish supportive policy, legal, and institutional frameworks. It mandates the creation of national and regional digital innovation hubs, improved access to finance, and partnerships between public and private stakeholders.

Article 33 is particularly novel, as it has no equivalent in the DEPA. It underscores the importance of digital skills development by requiring State Parties to integrate digital skills policies into national development frameworks. It also calls for national and regional centres for digital skills development programmes, with a focus on diversity and inclusivity, particularly for MSMEs and start-ups. Finally, it encourages multi-stakeholder partnerships to support the effective delivery of these initiatives.

9.2 Technical assistance, capacity building & cooperation

The DTP places notable emphasis on technical assistance, capacity building, and cooperation. These elements are not typically prioritised to the same extent in DTAs.¹⁵⁶ Article 43 provides that State Parties ‘shall cooperate’ on matters relating to digital trade, thereby establishing a cooperation obligation. This cooperation includes the exchange of information, joint research, training activities, peer learning, and the sharing of experiences and best practices. It lists a wide range of areas for cooperation, including personal data protection, cross-border data transfers, cybersecurity, digital payments, MSME support, digital skills development, emerging technologies, and other matters relevant to boosting, facilitating, and regulating digital trade.

¹⁵⁶ Kugler, IISD, 2024.

Complementing this, Article 42 provides that State Parties agree to support and strengthen one another's capacity to promote digital trade and implement the Protocol. It also mandates the Secretariat, in collaboration with State Parties and other stakeholders, to coordinate technical assistance and capacity-building initiatives in support of implementation.

The Secretariat's mandate to coordinate technical assistance and capacity building may prove essential in addressing implementation and enforcement challenges. While the commitments lack specific benchmarks or compliance criteria, this coordinating function provides a mechanism to support enforcement and address capacity gaps. It is further reinforced by targeted cooperation provisions in six of the eight Annexes,¹⁵⁷ and by capacity-building commitments in five, often linked to cooperation.¹⁵⁸ Taken together, these provisions send an important signal to those State Parties that require support to integrate into the digital economy and to fully implement the DTP.

9.3 Transparency

Part IX of the DTP establishes transparency obligations in Articles 38 to 41, aimed at ensuring accountability. State Parties are required to promptly publish or make publicly available, including through electronic means, their laws, regulations, policies, agreements, and administrative rulings relating to digital trade.¹⁵⁹ To the extent possible, they must also ensure that open government information is accessible in machine-readable formats and may be freely used, reused, and redistributed.¹⁶⁰

Under Article 40, State Parties must notify each other, via the Secretariat, of relevant agreements, as well as new or amended laws, and measures affecting the operation of the Protocol. They are also required to respond to specific information requests and to designate National Focal Points on digital trade. The Secretariat is tasked with circulating notifications and assisting the Committee on Digital Trade in developing notification procedures. Article 41 clarifies that these transparency obligations do not extend to the disclosure of confidential information, particularly where this would compromise law enforcement, commercial interests, or national security. Transparency and notification requirements are also addressed in more detail in seven of the eight Annexes, tailored to the respective topics they cover.¹⁶¹

9.4 Missing elements

The DTP notably does not contain any country-specific special and differential treatment (SDT) provisions tailored to levels of development, which could have contributed to limiting intra-African inequalities.¹⁶² Moreover, the absence of a general exception clause¹⁶³ limits the ability of State Parties to justify digital trade restrictions aimed at bridging the digital divide. This is particularly

¹⁵⁷ Art. 18 of the FinTech Annex; Art. 22 of the DigPay Annex; Art. 15 of the DigID Annex; Art. 15 of the EmergTech Annex; Art. 21 of the CBDT Annex; and Art. 8 of the Annex to the DTP on Online Safety and Security (Online Safety Annex).

¹⁵⁸ Art. 18 of the FinTech Annex; Art. 22 of the DigPay Annex; Arts. 15 and 9 of the EmergTech Annex; Art. 21(c) of the CBDT Annex; and Art. 8 of the Online Safety Annex.

¹⁵⁹ Art. 38 of the DTP.

¹⁶⁰ Art. 39 of the DTP.

¹⁶¹ Art. 7 of the Source Code Annex; Art. 7 of the Online Safety Annex; Art. 20 of the CBDT Annex; Art. 14 of the EmergTech Annex; Art. 14 of the DigID Annex; Art. 15 of the DigPay Annex; and Art. 10 of the FinTech Annex.

¹⁶² According to confidential meeting minutes (on file with the author), Malawi and Uganda advocated for the recognition of the differing levels of development among countries in the region and the inclusion of SDT-provisions.

¹⁶³ See above section 5.2.

relevant in light of the WTO panel's finding in *Brazil – Taxation*, which confirmed that such concerns could fall within the scope of Article XX(a) of the GATT, relating to public morals.¹⁶⁴ In the absence of a comparable general exception in the DTP, State Parties can invoke digital inclusion considerations only with respect to cross-border data transfer restrictions and source code disclosures, owing to the specific public policy exceptions provided. Beyond that, they may have limited policy space to adopt measures in support of infant digital industries and to pursue broader developmental objectives.

10 Conclusion

The AfCFTA DTP marks a significant milestone in Africa's efforts to integrate its digital economies and establish a coherent, continental framework for digital trade governance. By combining traditional trade commitments with rules tailored to the digital economy, the DTP reflects a uniquely African approach that blends global best practices with regional realities. Its structure, annexes, and scope indicate a deliberate attempt to move beyond aspirational declarations toward a rules-based digital trade regime.

Much of the Protocol's success, however, will depend on implementation at the national level. The legal commitments contained in the DTP and its annexes often require substantial domestic regulatory reform, as well as capacity building, particularly in areas such as data governance, interoperability, online trust, and digital inclusion. While the Protocol allows for a degree of flexibility and recognises public policy objectives, it also introduces enforceable obligations that may constrain domestic regulatory space, particularly in the absence of a general exceptions clause. The provisions on RoO and customs duties for digital products, as well as the nuanced framework for cross-border data flows, underscore the DTP's ambition but also highlight potential areas of legal uncertainty and administrative complexity.

Despite these challenges, the DTP offers a foundation upon which a more inclusive and integrated digital economy can be built. Its innovative provisions on digital trade inclusion, MSME support, and regional cooperation, though framed in soft language, signal a growing collective recognition among State Parties of the need to address persistent digital inequalities. The emphasis on cooperation, transparency, and institutional development, including through the Committee on Digital Trade and the AfCFTA Secretariat, provides a basis for sustained engagement and gradual convergence.

In short, the DTP is a forward-looking instrument that presents both opportunities and tests for Africa's digital transformation. Its success will ultimately depend on the political will of State Parties, the responsiveness of national implementation frameworks, and the capacity to ensure that digital trade contributes meaningfully to the continent's broader development goals.

¹⁶⁴ WTO, *Brazil – Certain Measures Concerning Taxation and Charges (Brazil-Taxation)*, Report of the Panel, 11 January 2019, WT/DS472/R, para. 7.548.

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